

WARNING: THIS DRAFT DELIBERATELY CONTAINS ONE-SIDED AND POTENTIALLY UNENFORCEABLE TERMS

RESIDENTIAL RENTAL AGREEMENT

High-risk / landlord-favourable training sample

Purpose of this document: to demonstrate contractual red flags that can expose a tenant to substantial financial, privacy, possession, and dispute risk. It should not be executed without rewriting and local legal review.

Agreement date	___ / ___ / 20___
Landlord / Owner	[FULL LEGAL NAME], residing at [ADDRESS]
Tenant	[FULL LEGAL NAME], residing at [CURRENT ADDRESS]
Rented premises	[FULL PROPERTY ADDRESS, UNIT, PARKING AND INVENTORY DETAILS]
Term	36 months from [START DATE] to [END DATE]
Monthly rent	INR _____, payable in advance on or before the 1st day of each month
Security deposit	Six months rent: INR _____

Terms and Conditions

- Grant and exclusive landlord discretion.** The Landlord permits the Tenant to occupy the Premises solely as a personal residence. The Landlord may alter building rules, access procedures, parking allocations, or permitted use at any time by notice, and the Tenant shall comply immediately. **[Risk flag: Unilateral rule changes without tenant consent.]**
- Non-refundable security deposit.** The Security Deposit is described as non-interest-bearing and non-refundable. The Landlord may apply it toward any alleged damage, unpaid amount, cleaning, vacancy loss, repainting, administrative cost, legal cost, or other charge determined by the Landlord. The Tenant shall replenish any amount used within three days. **[Risk flag: Deposit can be forfeited without itemisation, evidence, or a refund deadline.]**
- Rent escalation.** Rent shall automatically increase by 10% every six months. In addition, the Landlord may revise rent to prevailing market rent at any time on 30 days written notice, regardless of the fixed term. **[Risk flag: Multiple increases and unilateral mid-term revision.]**
- Late charges and default interest.** If rent is not credited by the first day of the month, the Tenant shall pay a late charge of 5% of monthly rent for each day of delay, together with interest at 24% per annum and collection expenses. **[Risk flag: Potentially excessive and compounding financial penalties.]**
- Repairs and condition.** The Tenant accepts the Premises strictly as-is and shall bear all costs of maintenance and repair, including structural defects, water seepage, major plumbing, electrical systems, appliances, pest control, common-area damage attributed by the Landlord, and replacement due to normal wear. **[Risk flag: Transfers owner-level and structural obligations to tenant.]**
- Inspection and entry.** The Landlord, agents, contractors, prospective buyers, lenders, or other authorised persons may enter the Premises at any time, with or without notice, using retained keys. Refusal of entry constitutes material breach. **[Risk flag: Broad access undermines privacy and quiet enjoyment.]**
- Utilities, taxes, and society charges.** The Tenant shall pay all utility bills, property taxes, insurance premiums, association or society charges, sinking fund contributions, special assessments, penalties, and all increases relating to the Premises. **[Risk flag: Charges unrelated to tenant consumption are shifted to tenant.]**
- Guests, work, and conduct.** No guest may remain for more than 24 hours in any month. Work from home, tutoring, online business, food delivery, gatherings, pets, smoking, and use of musical instruments are prohibited unless the Landlord gives revocable written approval. **[Risk flag: Overbroad lifestyle restrictions and subjective enforcement.]**
- No tenant termination.** The Tenant may not terminate before the end of the Term for any reason, including job transfer, illness, habitability concerns, safety concerns, or loss of essential services. Early departure makes all remaining rent immediately due. **[Risk flag: No reasonable exit right; accelerates future rent.]**

HIGH-RISK TENANT SAMPLE - NOT FOR SIGNING

- 10. Landlord termination without cause.** The Landlord may terminate this Agreement for convenience on seven days notice and may require immediate possession without paying relocation costs or refunding prepaid rent beyond the date selected by the Landlord. **[Risk flag: One-sided termination right.]**
- 11. Immediate repossession and belongings.** Upon any alleged breach, the Landlord may change locks, disconnect services, restrict access, remove occupants, and store or dispose of belongings at the Tenant's cost without court proceedings or further notice. **[Risk flag: Self-help eviction and service disconnection may conflict with mandatory law and due process.]**
- 12. Damage assessment.** The Landlord's assessment of damage, cleaning standard, depreciation, replacement price, and contractor cost shall be final and binding. Photographs, invoices, joint inspection, or proof of payment are not required. **[Risk flag: No objective evidence or dispute mechanism for deductions.]**
- 13. Broad indemnity and waiver.** The Tenant releases and indemnifies the Landlord from all claims, including claims arising from defects, negligence, theft, water leakage, fire, third-party acts, service interruptions, or personal injury, except where waiver is prohibited by law. **[Risk flag: Attempts to shift nearly all liability to tenant.]**
- 14. Personal data and surveillance.** The Tenant consents to unrestricted collection, storage, sharing, and publication of identity documents, financial information, photographs, visitor logs, access-control records, and CCTV footage for any purpose selected by the Landlord. **[Risk flag: No purpose limitation, retention limit, or security standard.]**
- 15. Renewal and holding over.** Unless the Landlord objects, the tenancy renews automatically for a further 36 months at rent fixed solely by the Landlord. If the Tenant remains after termination, use and occupation charges shall be five times the last monthly rent. **[Risk flag: Automatic long renewal and punitive holding-over charge.]**
- 16. Dispute forum and costs.** All disputes shall be decided exclusively in a forum and city selected by the Landlord. The Tenant shall reimburse all legal fees and travel costs incurred by the Landlord, regardless of outcome. **[Risk flag: One-sided venue and legal-cost allocation.]**
- 17. Entire agreement and unilateral interpretation.** The Landlord's interpretation of this Agreement, building rules, inventory condition, and compliance shall prevail. Any ambiguity shall be resolved in favour of the Landlord. **[Risk flag: Removes neutral interpretation and mutuality.]**

High-risk review checklist

- Replace the non-refundable deposit language with a capped, refundable deposit and an itemised deduction process.
- Delete self-help eviction, lockout, utility disconnection, and disposal-of-property language; require lawful notice and due process.
- Make rent increases predictable and mutually agreed; remove unilateral mid-term increases.
- Allocate structural and major-system repairs to the owner; define minor tenant maintenance.
- Require advance notice for entry except genuine emergencies.
- Give both parties balanced termination, cure, dispute, and cost provisions.
- Limit personal-data collection to lawful, necessary purposes with secure handling and retention limits.

Legal framework note

This sample is India-oriented but not state-specific. A lease is generally governed by the written contract together with applicable central and state/UT laws. Registration, stamp duty, rent-control/tenancy rules, police verification, and dispute forums vary by location. Seek a local advocate before signing.

- Transfer of Property Act, 1882 - including the statutory concept of a lease and general rules on duration/termination where applicable.
- Registration Act, 1908, Section 17 - registration is compulsory for certain leases, including leases from year to year or for a term exceeding one year.
- Model Tenancy Act, 2021 - a model framework intended to balance landlord and tenant interests; actual applicability depends on adoption or adaptation by the relevant state/UT.

Signatures

The parties acknowledge that they have read and understood this document and have had the opportunity to obtain independent legal advice.

LANDLORD / OWNER	TENANT
Signature: _____	Signature: _____
Name: _____	Name: _____
Date: _____	Date: _____

WITNESS 1	WITNESS 2
Signature: _____	Signature: _____
Name: _____	Name: _____
Address: _____	Address: _____